

Court No. - 40

Case :- WRIT - C No. - 11573 of 2018

Petitioner :- Vijay

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Tanisha Jahagir Monir

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Learned counsel appearing for the Electricity Department seeks some time to inform the Court regarding status of inspection and action taken against the petitioner.

Put up day after tomorrow i.e. 04.04.2018.

Order Date :- 2.4.2018

A. Verma

Court No. - 40**Case :-** WRIT - C No. - 11573 of 2018**Petitioner :-** Vijay**Respondent :-** State Of U P And 2 Others**Counsel for Petitioner :-** Tanisha Jahagir Monir**Counsel for Respondent :-** C.S.C.,Chandan Agarwal**Hon'ble Amreshwar Pratap Sahi,J.****Hon'ble Shashi Kant,J.**

Heard Ms. Tanisha Jahagir Monir, learned counsel for petitioner and Sri Anshul Kumar Singhal, learned counsel appearing for respondent nos. 2 and 3.

The petitioner has challenged the proceedings initiated for recovery of amount of Rs.3,32,949/- as Electricity dues on account of alleged theft of electricity by the petitioner, dated 7th February, 2018. Further, there is challenge to the provisional assessment notice dated 18.01.2018, Annexure no. 1 to the writ petition in respect of the same alleged consumption of electricity.

The contention right from the inception is to the effect that the entire procedure which has been carried out does not in any way relate to either any consumption of electricity by the petitioner or any electrical installation that may give rise for any action to be taken under the provisions of Uttar Pradesh Government Electrical Undertaking (Dues Recovery) Act, 1958 (*hereinafter referred to as 'the Act, 1958'*).

The contention raised on behalf of petitioner is that such an assessment and realisation of recovery is in the teeth of the pronouncement of this Court in the case of **Ashok Kumar and Others Vs. State of U.P. and Others, 2008 (6) ADJ 660**. In essence, the basic contention is that the procedure prescribed under the Uttar Pradesh Electricity Supply Code, 2005 (*hereinafter referred to as 'the*

Code, 2005') has been clearly violated without there being any liability on the petitioner.

Thus, there is a two fold contention, firstly, that there is no liability of the petitioner at all and secondly, even if it is presumed that action can be taken on the basis of any such report then no procedure has been followed before raising a demand against the petitioner.

We had adjourned the matter on 02.04.2018 to enable the learned counsel for the respondent-Department to seek instructions. Today, Sri Singhal has produced before us the 'Inspection Report' dated 18th December, 2017 which is in relation to one Kanwar S/o Ram Singh, R/o Village – Jhatta, District – NOIDA. The Inspection Report records that LT Line cable of black colour has been laid beneath the land which has already been acquired by the Greater NOIDA Authority, but the cable is utilized for running a 5 H.P. Electrical Motor in the tube well of the said person against whom inspection has been carried out.

The Inspection Report nowhere indicates the name of the petitioner. The provisional assessment was carried out against Sri Kanwar where after objections were filed to the effect by the assessee that wrong names have been furnished and therefore assessment has been made incorrectly against them. On such representation being filed by the assessee, it is urged that a fresh inspection was directed to be conducted, which was carried out on 30th December, 2017 by the Sub Divisional Officer Sri Pankaj Sharma, who in his report to the Station House Officer of Police Station – Knowledge Park, Greater NOIDA, tendered information to the effect, that on fresh inspection it has been found that cable was being utilised by some other person namely the petitioner and one other person namely Umesh Kumar. On the basis of the said inspection dated 30th December, 2017 and the

report of the Sub Divisional Officer, provisional notice was issued to the petitioner on 18th January, 2018 which is impugned in the present writ petition.

On a perusal of the said documents that have been placed before us by the learned counsel for the Electricity Department it is abundantly clear that inspection was not in relation to the premises or land of the petitioner. The subsequent inspection dated 30th January, 2017 was behind the back of the petitioner. Thirdly, there is a clear violation of principles of natural justice inasmuch as the procedure adopted for issuing provisional assessment has not been followed. It is therefore, clear that the liability which had been earlier imposed on one Kanwar is sought to be transposed on the petitioner without following the due procedure of law.

We had called upon the learned counsel for the respondent Electricity Department to assist us on the aforesaid issues but no satisfactory answer could be given to the Court's queries. Learned counsel for the Department does not propose to file any counter affidavit at this stage and prays that appropriate orders be passed in this matter.

We, therefore, are of the considered opinion that the entire proceedings against the petitioner have been carried out in violation of the procedure prescribed in the Code, 2005 and the recovery proceedings as a consequence thereof are also clearly vitiated being in violation of principles of natural justice and also in violation of the law laid down in the case of **Ashok Kumar (supra)**.

The writ petition deserves to be allowed and it is accordingly **allowed**.

The provisional assessment notice dated 18th January, 2018 and the consequential recovery certificate dated 07.02.2018 are hereby

quashed.

It shall be open to the respondent-Electricity Department to carry out any fresh inspection, upon due information to the petitioner in accordance with the procedure prescribed under the Code, 2005 and then proceed to take any action that may be permissible under law.

No order as to costs.

Order Date :- 4.4.2018

A. Verma